

(Published in the Tulsa World,
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ORDINANCE NO. _____

AN ORDINANCE DECLARING A ~~365-DAY~~ MORATORIUM UNTIL DECEMBER 31, 2026, ON THE ACCEPTANCE OF APPLICATIONS FOR, PROCESSING OF AND ISSUANCE OF BUILDING PERMITS THAT WOULD ALLOW CONSTRUCTION ON, OR USE OF, PROPERTY FOR DATA CENTER USE LOCATED IN THE CITY OF TULSA; PROVIDING FOR ~~AN~~ EXCEPTIONS AND AN APPEAL PROCESS; PROVIDING EFFECTIVE AND REPEAL DATES; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY.

WHEREAS, on November 6, 2024, the City Council adopted an ordinance defining data centers and establishing zoning standards for this use; and

WHEREAS, data centers were included under Low-impact Manufacturing and Industry based on knowledge of data centers at the time, and whereas Low-impact Manufacturing and Industry uses are described as not generating noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration as part of their normal operations; and

WHEREAS, historically, data centers in Tulsa were of smaller scale and did not generate potential impacts that have now become associated with new large-scale data centers;

WHEREAS, on February 11, 2026, the City Council voted 8-0 to request that the Planning Office and the Tulsa Metropolitan Area Planning Commission re-evaluate data center regulations in the City of Tulsa Zoning Code and provide recommendations to the Council; and

WHEREAS, a temporary moratorium on data center uses, in conjunction with the consideration of amendments to the Zoning Code, will allow the City Council time to evaluate the full scope of potential off-site impacts to determine if the use was categorized appropriately;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF TULSA, OKLAHOMA:

Section 1. There is hereby declared a Moratorium on the acceptance of applications for, processing of and issuance of building permits that would allow construction on, or use of, real property located in the city of Tulsa for **Data Center** use, as described in Title 42, Tulsa Revised Ordinances (the Tulsa Zoning Code), Section 35.070-A.4. No application for a building permit for construction of a building or structure for such use shall be accepted or processed by the City of Tulsa, and no building permit shall be issued for the same, during the term of this Moratorium, except as provided in Section 2.

Section 2. EXCEPTIONS.

A. Project Anthem Phase 1. This Moratorium shall not apply to a Data Center on the property shown in **Exhibit A** and described in **Exhibit B**, ~~constituting Project Anthem Phase 1~~, which is the subject of the Project Anthem Economic Development Project Plan and Supporting Incentive District, approved by Ordinance 25288, adopted by the Council on May 1, 2024.

A.B. Project Anthem Phase 2. This Moratorium shall not apply to one additional Data Center, which is the subject of pending zoning case Z-7851, if and where appropriately zoned.

Section 3. APPEALS. During the term of this Moratorium, the City Council shall hear any appeal from an affected owner of affected property, and may grant an exemption from the provisions of this Moratorium for good cause shown.

Section 4. 60-DAY REPORTS. The Planning Office shall provide reports to the City Council approximately 60-days after the effective date of this ordinance and each 60-days thereafter until this Moratorium expires to review progress toward re-evaluating data center regulations in the Zoning Code and the status of recommendations to the Council.

Section ~~4~~5. EFFECTIVE DATES. This Moratorium shall become effective immediately upon its adoption, approval and publication, and shall remain in full force and effect through ~~March 11~~**December 31, 2027**~~6~~, or on the effective date of an ordinance amending data center regulations in the City of Tulsa adopted in response to the pending Planning Office and Planning Commission review, whichever is earlier, after which it shall automatically be null, void and repealed, provided that the repeal date of the Moratorium may be modified by the enactment of a subsequent ordinance of the City of Tulsa.

Section ~~5~~6. SEVERABILITY. If any section, sentence, clause or phrase of this ordinance or any part thereof is for any reason found to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remainder of this ordinance or any part thereof.

Section ~~6~~7. EMERGENCY. That an emergency is hereby declared to exist for the preservation of the public peace, health and safety, by reason whereof this Ordinance shall take effect immediately upon its adoption, approval and publication.

ADOPTED, by the Council on this _____ day of _____ 2026.

Chair of the Council

ADOPTED, as an emergency measure, on this _____ day of _____ 2026.

Chair of the Council

OFFICE OF THE MAYOR

APPROVED by the Mayor of the City of Tulsa, Oklahoma: _____.
Date

Mayor

ATTEST:

City Clerk

APPROVED:

City Attorney